

HOUSE No. 4249

Section 29 contained in the engrossed Bill making appropriations for the fiscal year 2026 (see House, No. 4240), which had been returned by Her Excellency the Governor with recommendation of amendment (for message, see Attachment C of House, No. 4250). July 4, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to vital statistics.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to update the vital statistics statute, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 46 of the General Laws is hereby amended by striking out section
2 1, as amended by section 1 of chapter 166 of the acts of 2024, and inserting in place thereof the
3 following section:-

4 Section 1. Each local clerk shall obtain and record the following facts set forth in this
5 section, as well as such additional information that may be required under federal statutes or
6 contracts, regulations promulgated pursuant to section 4 of chapter 17 or as the commissioner of
7 public health may require, relative to births, marriages, acknowledgments and adjudications of
8 parentage and deaths which occurred in the town or city and for certificates of marriage issued
9 by the town or city:

10 In the record of births, the date of birth, place of birth, the name, residence and sex of
11 child and the names, names at birth or adoption, places of birth and dates of birth of the parent or
12 parents;

13 In the record of birth of a child born to parents not married to each other, the name of and
14 other facts relating to the other parent or parents shall not be recorded except as provided in
15 section 2 of chapter 209C where parentage has been acknowledged or adjudicated under the laws
16 of the commonwealth or under the laws of any other jurisdiction;

17 In the record of marriages, date of record, date and place of marriage, name, residence
18 and official station of the person by whom solemnized; for each of the parties to be married the
19 name, date and place of birth, residence, age, number of the marriage and if previously married,
20 whether widowed or divorced and the name at birth or adoption of the parties' parents;

21 In the record of death, date of death, name of deceased, including surname at birth or
22 adoption, gender, race, marital status, education, name of spouse if ever married, supposed age,
23 residence, occupation, place of death, place of birth, surname at birth or adoption and places of
24 birth of the deceased's parent or parents, disease or cause of death, defined so that it can be
25 classified under the international classification of causes of death, and place and type of
26 immediate disposition. The record of death shall not include the social security number of the
27 deceased. As used in this section, the word "residence" shall include the name of the street and
28 number, if any, of the house.

29 SECTION 2. This act shall take effect as of July 1, 2025.